

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

INTERMODAL MOTOR CARRIERS CONFERENCE, AMERICAN
TRUCKING ASSOCIATIONS, INC., *Complainant*

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT ASSOCIATION
INC.; CONSOLIDATED CHASSIS MANAGEMENT, LLC;
CMA CGM S.A.; COSCO SHIPPING LINES CO. LTD.;
EVERGREEN LINE JOINT SERVICE AGREEMENT, FMC NO.
011982; HAPAG-LLOYD AG; HMM CO. LTD.; MAERSK A/S;
MSC MEDITERRANEAN SHIPPING COMPANY S.A.;
OCEAN NETWORK EXPRESS PTE. LTD.; WAN HAI LINES LTD.;
YANG MING MARINE TRANSPORT CORP.; AND
ZIM INTEGRATED SHIPPING SERVICES, *Respondents*.

DOCKET NO. 20-14

Served: September 27, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER ON MOTION TO COMPEL AND FOR SANCTIONS

On September 7, 2021, Complainant filed a motion to compel discovery from and sanctions against Respondents MSC Mediterranean Shipping Company S.A. (“MSC”), ZIM Integrated Shipping Services (“ZIM”), COSCO Shipping Lines Co. Ltd. (“COSCO”), and Wan Hai Lines Ltd. (“Wan Hai”), collectively the “non-producing Respondents” based on their failure to produce any discovery. Motion at 1. Complainant requested an order requiring the non-producing parties to complete their document productions as quickly as possible, attorneys’ fees for the motion, and a requirement that the non-producing Respondents cure any deficiencies in their document productions within three calendar days of notice by email from IMCC. Motion at 9.

On September 8, 2021, non-producing Respondents submitted an interim response limited to the issue of expedited consideration, asserting that “Respondents will provide responsive documents” and that “Respondents have never declined to produce documents or indicated that they would not.” Interim response at 2.

On September 14, 2021, non-producing Respondents filed their opposition to the motion and a cross motion for extension of the scheduling order. Non-producing Respondents assert that additional time is needed to complete the document productions and highlight reasons for the delayed response from each of the four non-producing Respondents. They argue that the motion

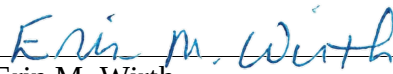
should be denied and sanctions should not be imposed, asserting that they “confirmed that they would make their respective productions – they simply needed more time to do so.” Opposition at 13-17.

On September 16, 2021, Complainant filed a response to the cross motion to amend the scheduling order, asserting that it was not responsible for the delay but stating that it does not oppose the extension to the schedule.

Pursuant to the second amended scheduling order, discovery responses were due by September 3, 2021. If non-producing Respondents were unable to meet that deadline, it was their obligation to notify Complainant and the undersigned prior to that date. It was reasonable for Complainant to expect discovery to be produced by the deadline and to file an appropriate motion. The non-producing Respondents have indicated in both their interim response and their opposition that they intend to produce the requested documents. Accordingly, good cause has been stated for the motion to compel and non-producing Respondents are ordered to produce the requested discovery.

On September 23, 2021, the third amended scheduling order was issued, providing additional time to complete document production as requested by the parties. No sanctions will be imposed at this time, however, failure to produce the requested discovery may result in sanctions. Moreover, the parties are expected to communicate with each other regularly to ensure that any delays or concerns are raised in a timely fashion and to work together to resolve discovery disputes.

For the above-stated reasons, it is hereby **ORDERED** that the motion to compel and for sanctions be **GRANTED IN PART AND DENIED IN PART**. MSC, ZIM, COSCO, and Wan Hai are hereby **ORDERED** to make timely disclosures and responses to Complainant’s discovery requests.


Erin M. Wirth
Chief Administrative Law Judge